

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Misc Case No.11013 of 2024

Md. Abdur Rahman
.... Accused-petitioner
-Versus-
The State
.... Opposite Party
Mr. Md. Masudul Hoq, Advocate
.... For the petitioner
Mr. Sujit Chatterjee, DAG with
Ms. Farhana Afroze Runa, A. A. G with
Mr. Abdul Aziz Masud, A. A. G. with
Md. Shamim Khan, A.A.G
... For the State

Heard and Judgment on 05.03.2024.

S M Kuddus Zaman, J:

On an application under Section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the impugned order dated 23.01.2024 passed by the learned Additional Metropolitan Sessions Judge, 3rd Court, Chattogram in Criminal Revision Case No.17 of 2024 rejecting the revisional application and thereby affirming the order dated 18.12.2023 passed by the learned Metropolitan , Chattogram corresponding to G. R. No.403 of 2023 (Bakolia) arising out of Bakolia Police Station Case No.07 dated 05.10.2023 under section 105 of the Sarak Paribahan Ain, 2018 rejecting an application for getting jimma of the seized CNG being Registration No.Chatta Metro.Taw-12-5442, Engine No.AZWJM47616, Chassis No.MD2A27AZ29JWM14617 in the petitioners jumma/custody, now pending in the Court of learned Chief Metropolitan

Magistrate, Chattogram should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

Facts in short are that the petitioner filed an application to the learned Metropolitan Magistrate, Chattogram for getting zimma (custody) of the seized CNG being CNG being Registration No.Chatta Metro.Taw-12-5442, Engine No.AZWJM47616, Chassis No.MD2A27AZ29JWM14617, but the learned Metropolitan Magistrate, Chattogram rejected the said petition by order dated 18.12.2023.

Being aggrieved by above order the petitioner preferred Criminal Revision Case No.17 of 2024 to the learned Additional Metropolitan Sessions Judge, Chattogram who rejected above revision vide impugned order dated 01.10.2023.

Challenging the legality and propriety of above order the petitioner has moved to this court and obtained this Rule.

Mr. Md. Masudul Hoq, the learned Advocate for the accused-petitioner submits that the petitioner is the rightful owner of above CNG. Above CNG is kept in the open sky in front of the Police Station which is causing serious damage to above valuable vehicle. The petitioner wants to get jimma of above CNG and he will ensure better maintenance of the same and produce the CNG before the Court below whenever he is asked to do so. But the learned Additional Metropolitan Sessions Judge, Chattogram failed to appreciate above materials on record and most illegally rejected above revisional application which is not tenable in law.

On the other hand Mr. Sujit Chatterjee, the learned Deputy Attorney General for the state opposes this petition of the petitioner for getting jimma seized CNG.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR and the Seizure list that one CNG was recovered and seized in connection of this case.

It further turns out from the BRTA report that the petitioner is the owner of the seized CNG.

The ultimate fate of above seized CNG shall be determined at trial. But in the meantime above CNG which is a valuable asset requires proper maintenance. If the CNG is given in the jimma of the petitioner who is the rightful owner of the same then the proper maintenance of the vehicle will be ensured. The petitioner shall produce above CNG to the trial court whenever he is directed to do so.

In above view of the materials on record we hold that the learned Additional Metropolitan Sessions Judge, 3rd Court, Chattogram committed an error in rejecting the application of the petitioner seeking jimma of above CNG which is not tenable in law.

In the result, the Rule is made absolute.

The impugned order dated 23.01.2024 passed by the learned Additional Metropolitan Sessions Judge, 3rd Court, Chattogram in Criminal Revision Case No.17 of 2024 is set aside.

The learned Additional Metropolitan Sessions Judge, 3rd Court, Chattogram is directed to place above CNG in the jimma of the petitioner with condition that the petitioner shall produce the CNG to the trial court whenever he is directed to do so.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.